

		Plaintiff is ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
111	Matute v. Textile Products, Inc. 2023-01354041	Motion for Preliminary approval of Class/PAGA Settlement Plaintiff Leandro Fajardo Matute’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to August 27, 2026 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action. There is a separate but related PAGA action. More specifically, On 10/4/2023, Plaintiff Leandro Fajardo Matute, individually and on behalf of all others similarly situated, filed a class action complaint against Defendants Textile Products, Inc. and Kordsa, Inc., alleging various Labor Code wage-and-hour violations and unfair business practices. (ROA #2.) On 3/21/2024, Defendants answered. (ROA #26, 29.) On 2/15/2024, the Court took notice of a related case—i.e., Plaintiff’s separately filed PAGA-only action, <i>Fajardo Matute v. Textile Products, Inc.</i>, Case No. 2023-01354032, which is also pending in this department. (ROA #21.) On 4/3/2026, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action and PAGA Settlement Agreement (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class claims in this action and Plaintiff’s PAGA claim in the PAGA action for the non-reversionary gross settlement amount (GSA) of \$900,000. The GSA includes \$45,000 allocated for PAGA penalties. The Court has identified a few issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 1. In ¶ 7.5.2, the Settlement Agreement states twice that “[t]he Administrator’s Determination [of authenticity] shall be final and not appealable or otherwise susceptible to challenge.” (Settlement, ¶ 7.5.2.) But the Settlement Agreement must provide that the Court

		has final say on the validity and authenticity of requests for exclusion. - In ¶ 5.3, the Released PAGA Claims definition explicitly includes release of PAGA claims for “(12) willful misclassification (pursuant to Cal. Labor Code § 226.8).” The release of claims for PAGA penalties relating to “willful misclassification (pursuant to Cal. Labor Code § 226.8” does not match the claims that were or reasonably could have been asserted based on the facts alleged in the LWDA notice letter. - The Settlement Agreement at ¶ 9.3 should specify that the Court’s continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h). - Also, in ¶ 11.19, the Settlement Agreement states that “[t]he Parties further agree and intend that the Los Angeles Superior Court may enforce this Agreement pursuant to Code of Civil Procedure § 664.6.” However, the correct court for this case is Orange County Superior Court. Class Counsel must also provide the Court with a revised Class Notice with the following revisions: - The notice should be revised so as to be consistent with the resolution of the issues identified above. - The following sentences on p. 1 should be bolded: “Your legal rights are affected whether you act or not act. READ THIS NOTICE CAREFULLY. You will be deemed to have carefully read and understood it.” - The notice should state that any Class Member who does not request exclusion may, if the Member so desires, enter an appearance through counsel. (Cal. Rules of Court [CRC], rule 3.766(d)(5).) - In Section 17, the first paragraph may be interpreted as advising Class Members to wait to object until after Plaintiff has filed a motion for final approval, which need not occur until 16 court days before the final approval hearing date and may therefore occur after Class Members’ deadline to send written objections. The notice should simply inform Class Members of the deadline for the parties’ filings in support of final approval as well as the final approval hearing date. - In Section 22, the link to the Court’s website does not work. - The notice should specify that the judgment, “whether favorable or not,” will be binding all Class Members who do not request exclusion. (CRC, rule 3.766(d)(4).) Class Counsel must also provide a revised [Proposed] Order Granting Preliminary Approval with the following revisions: - The revised proposed order should attach the revised class notice. - Attorney information must be deleted from the caption page. - The proposed order should reference by name and ROA number all the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
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112	Lopez vs. Atrium Hospitality LP 2022-01245971	Motion for Final Approval The court has reviewed and considered the papers filed in support of plaintiff’s motion for final approval of a \$150,000 class action and PAGA settlement. The court GRANTS the motion as follows: \$5,000.00 for enhancement award to plaintiff; \$45,000.00 for attorneys’ fees; \$11,420.85 for litigation costs; \$6,850.00 for settlement administration costs; and \$10,000.00 total PAGA penalties (\$7,500.00 to the LWDA). Plaintiff to submit a revised proposed order reflecting the above disbursements. Plaintiff must also submit a redline version showing all changes. The final accounting hearing is scheduled for August 5, 2027 at 2:00 p.m. in Department CX102. Plaintiff shall submit a final accounting report at least 16 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller’s Office under the unclaimed property law. If all funds are not fully and finally disbursed prior to the filing deadline, including to the State Controller, plaintiff must request a continuance.